

TENTATIVE RULING

Case: Estrada v. Garcia
Case No. CV2025-2260

Hearing Date: April 7, 2026 **Department Fourteen** **9:00 a.m.**

Defendants Daniel Navarrete Garcia and Rosa Maria Hernandez De Anda's demurrer to first amended complaint is **OVERRULED**. (Code Civ. Proc., § 430.10.) Defendants did not timely file their demurrer. (Code Civ. Proc., §§ 430.40, subd. (a), 471.5, subd. (a); see also *Carlton v. Dr. Pepper Snapple Group, Inc.* (2014) 228 Cal.App.4th 1200, 1209-1210; De Marco decl., ¶ 4, Exhibit A; Schaps decl., ¶¶ 4-5, Exhibit A.) Defendants fail to establish that plaintiffs improperly served the first amended complaint. (Reply, pp. 2-3; *Billings v. Palmer* (1905) 2 Cal.App.432, 433 [noting that "it be the custom among lawyers to deliver the copy prior to the filing, and this may be taken as sufficient where the complaint is afterward filed, yet until then there is no service"].)

As the Court is overruling the demurrer, defendants have 10 days from the hearing date, by no later than **April 17, 2026**, to answer the first amended complaint. (Cal. Rules of Court, rule 3.1320(j).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Jefferson Capital Systems LLC v. Nguyen**
 Case No. CV2025-2602

Hearing Date: **April 7, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Chi Nguyen’s motion for an order deeming admitted the truth of facts and genuineness of documents and motion to compel responses are **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 2030.290 subd. (b), 2033.280, subd. (b).) First, defendant did not file a proof of service at least five court days before the hearing, showing that plaintiff Jefferson Capital Systems LLC was properly served with the moving papers. (Cal. Rules of Court, rule 3.1300(c); see also Code Civ. Proc., § 1005, subd. (b).) Second, as to the motion to compel responses, defendant did not specify whether he seeks to compel responses to the form interrogatories, special interrogatories, or both. (Code Civ. Proc., § 2030.290 subd. (b); see also Cal. Rules of Court, rule 3.1345(d).)

The notices of motions provide notice of this Court’s tentative ruling system. However, the notices do not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.